



SPONSOR: Sen. Hoffner & Sen. Townsend
Sens. Hansen, Sokola, Wilson; Reps. Burns, Lambert,
Romer, Yearick

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 14

AN ACT PROPOSING AN AMENDMENT TO ARTICLE II OF THE DELAWARE CONSTITUTION RELATING TO
REDISTRICTING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members
elected to each house thereof concurring therein):

Section 1. Amend § 2, Article II of the Delaware Constitution by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 2. Composition of House and Senate; terms of office; ~~districts; election.~~ district boundaries.

~~Section 2. The House of Representatives shall be composed of thirty-five members, plus such additional members
as shall be provided pursuant to Section 2A of this Article, who shall be chosen for two years. The Senate shall be
composed of twenty-one members, who shall be chosen for four years.~~

~~The State is hereby divided into thirty-five Representative Districts. There shall be such additional Representative
Districts as shall be provided pursuant to Section 2A of this Article. From each Representative District there shall be
chosen, by the qualified electors thereof, one Representative. The State is also hereby divided into twenty-one Senatorial
Districts, from each of which shall be chosen, by the qualified electors thereof, one Senator. In New Castle County there
shall be seven Senatorial Districts, numbered from one to seven inclusive; in Kent County, seven Senatorial Districts,
numbered from one to seven inclusive; and in Sussex County, seven Senatorial Districts from one to seven inclusive.~~

~~The Representative Districts in New Castle County are and shall be as follows:~~

~~Number One. All that portion of the City of Wilmington included within the Second and Fourth Wards, and those
parts of the Sixth and Eighth Wards, respectively, lying south of and bounded by the central line of Eighth street.~~

~~Number Two. All that portion of the said city included within the Ninth Ward, and those parts of the Sixth and
Eighth Wards, respectively, lying north of and bounded by the central line of Eighth street.~~

~~Number Three. All that portion of the said city included within the Seventh Ward, and that part of the Fifth Ward
lying north of and bounded by a straight line including the central line of Eighth street.~~

~~Number Four. All that portion of the said city included within the First and Third Wards, and that part of the Fifth
Ward lying south of and bounded by the central line of Eighth street, east of and bounded by the central line of Adams
street, and west of and bounded by the central line of Market street.~~

Number Five. All that portion of the said city included within the Tenth, Eleventh and Twelfth Wards, and that part of the Fifth Ward lying south of and bounded by a straight line including the central line of Eighth street, west of and bounded by the central line of Adams street, and bounded on the west by the westerly boundary line of the said city.

Number Six. Brandywine Hundred.

Number Seven. Christiana Hundred.

Number Eight. Mill Creek Hundred.

Number Nine. White Clay Creek Hundred.

Number Ten. New Castle Hundred.

Number Eleven. Pencader Hundred.

Number Twelve. Red Lion Hundred.

Number Thirteen. St. Georges Hundred.

Number Fourteen. Appoquinimink Hundred.

Number Fifteen. Blackbird Hundred.

The Representative Districts in Kent County are and shall be as follows:

Number One. Duck Creek Hundred.

Number Two. Little Creek Hundred and the first Election District of East Dover Hundred.

Number Three. Kenton Hundred.

Number Four. West Dover Hundred and all that portion of East Dover Hundred lying next to West Dover Hundred and separate from the rest of East Dover Hundred by the following boundary lines: beginning at the middle of the public road leading from the Horsehead road to Kenton at the point of intersection of Kenton Hundred and East Dover Hundred, thence running along the middle of the said road to the Horsehead road, thence running in a westerly direction along the middle of the said Horsehead road a short distance to a short road leading from the said Horsehead road to the road from Dover to Hazlettsville, known as the Hazlettsville road, thence running along the middle of the said short road from the Horsehead road to the said Hazlettsville road, thence running in a westerly direction along the middle of the said Hazlettsville road a short distance to the road leading therefrom to Wyoming, thence running along the middle of the said road leading from the said Hazlettsville road to Wyoming to the point of intersection of East Dover Hundred and North Murderkill Hundred.

Number Five. All that portion of East Dover Hundred not included in Districts numbers two and four.

Number Six. Parts of North Murderkill, South Murderkill and Mispillion Hundreds included within the following boundary lines: beginning at the intersection of the southern line of South Murderkill Hundred with the State of Maryland,

53 ~~thence running along the division line between Mispillion Hundred and South Murderkill Hundred to the public road~~
54 ~~leading from Whiteleysburg to Harrington, thence running in a southeasterly and easterly direction along the middle of said~~
55 ~~public road to the public road leading from Masten's Corner to Vernon, at or near White's Church, thence running in a~~
56 ~~northeasterly direction along the middle of said public road leading from Masten's Corner to Vernon, a short distance to the~~
57 ~~public road leading therefrom to the town of Harrington, being a continuation of the road leading from Whiteleysburg to~~
58 ~~Harrington, thence running in a southeasterly direction to the intersection of West street in the town of Harrington, thence~~
59 ~~running in a northerly direction along the middle of said West street to the middle of Wolcott street in said town of~~
60 ~~Harrington, thence running in an easterly direction along the middle of said Wolcott street to the middle of Dorman street in~~
61 ~~said town of Harrington, thence running in a northerly direction along the middle of said Dorman street to Brown's Branch,~~
62 ~~thence running in an easterly direction with the course of said Branch to the Delaware Railroad, thence running in a~~
63 ~~northerly direction along said Delaware Railroad to Beaver Dam Branch in South Murderkill Hundred, thence following the~~
64 ~~course of said Beaver Dam Branch in a northwesterly direction to the public road leading from Felton to Whiteleysburg,~~
65 ~~thence running in a northeasterly direction along the middle of the said public road from Felton to Whiteleysburg to the~~
66 ~~Owl's Nest road, thence running in a northerly direction along the middle of the said Owl's Nest road to the intersection of~~
67 ~~the Cowgill road from Woodside to Petersburg, thence running in a northerly direction along the middle of the said Cowgill~~
68 ~~road to the Reed road running from Woodside to DuPont's school house, thence running in a northwesterly direction along~~
69 ~~the middle of the said Reed road to DuPont's school house, thence running in a northerly direction along the middle of the~~
70 ~~public road leading from Willow Grove to Camden, a short distance to Stubb's Corner, thence running in a westerly and~~
71 ~~northwesterly and westerly direction along the middle of the public road leading from DuPont's school house to the~~
72 ~~Almshouse to Gray's Corner, thence continuing in a direct westerly line to the southern boundary line of West Dover~~
73 ~~Hundred, thence following the southern boundary line of West Dover Hundred in a westerly direction to the State of~~
74 ~~Maryland, thence running in a southerly direction along the eastern boundary line to the State of Maryland to the place of~~
75 ~~beginning.~~

76 ~~Number Seven. All that portion of North Murderkill Hundred not included in District number six.~~

77 ~~Number Eight. All that portion of South Murderkill Hundred not included in District number six.~~

78 ~~Number Nine. All that portion of Mispillion Hundred not included in District number six.~~

79 ~~Number Ten. Milford Hundred.~~

80 ~~The Representative Districts in Sussex County are and shall be as follows:~~

81 ~~Number One. Cedar Creek Hundred.~~

82 Number Two. All that portion of Nanticoke Hundred which lies north and west of Gravelly Branch, beginning at a
83 point where the said Gravelly Branch intersects the dividing line between Georgetown and Nanticoke Hundreds and
84 running in a southwesterly course to what was formerly known as Rest's Old Mill, thence along said branch to what was
85 formerly known as Collins' Mills, to its mouth being at the head of Middleford Mill Pond; together with North West Fork
86 Hundred.

87 Number Three. All that portion of Nanticoke Hundred which lies south and east of said Gravelly Branch,
88 beginning at a point where the said Gravelly Branch intersects the dividing line between Nanticoke and Georgetown
89 Hundreds, running in a southwesterly course to what was formerly known as Rest's Old Mill, thence along said branch to
90 what was formerly known as Collins' Mills, to its mouth at the head of Middleford Mill Pond; together with Seaford
91 Hundred.

92 Number Four. Broad Creek Hundred.

93 Number Five. Little Creek Hundred.

94 Number Six. Dagsboro and Gumboro Hundreds.

95 Number Seven. Baltimore Hundred.

96 Number Eight. Indian River Hundred.

97 Number Nine. Georgetown Hundred.

98 Number Ten. Broadkill and Lewes and Rehoboth Hundreds.

99 The Senatorial Districts in New Castle County are and shall be as follows:

100 Number One. All that portion of the City of Wilmington lying north of and bounded by a straight line including
101 the central line of Eighth street extending from the Delaware River to the westerly boundary of said city.

102 Number Two. All that portion of the said City lying south of and bounded by the straight line aforesaid including
103 the central line of Eighth street.

104 Number Three. Brandywine Hundred, together with all that portion of Christiana Hundred lying north of and
105 bounded by the central line of Lancaster Turnpike.

106 Number Four. Milk Creek Hundred, together with all that portion of Christiana Hundred lying south of and
107 bounded by the central line of the Lancaster Turnpike.

108 Number Five. White Clay Creek Hundred, Red Lion Hundred and New Castle Hundred.

109 Number Six. Pencader Hundred and St. Georges Hundred.

110 Number Seven. Appoquinimink Hundred and Blackbird Hundred.

111 The Senatorial Districts in Kent County are and shall be as follows:

Number One. ~~The first and second Representative Districts.~~

Number Two. ~~The third and fourth Representative Districts.~~

Number Three. ~~The fifth and seventh Representative Districts.~~

Number Four. ~~The sixth and ninth Representative Districts.~~

Number Five. ~~The eighth and tenth Representative Districts.~~

Number Six, at Large. ~~The first, second, fifth, seventh and eighth Representative Districts.~~

Number Seven, at Large. ~~The third, fourth, sixth, ninth and tenth Representative Districts.~~

The Senatorial Districts in Sussex County are and shall be as follows:

Number One. ~~The first and second Representative Districts.~~

Number Two. ~~The third and fourth Representative Districts.~~

Number Three. ~~The fifth and sixth Representative Districts.~~

Number Four. ~~The seventh and eighth Representative Districts.~~

Number Five. ~~The ninth and tenth Representative Districts.~~

Number Six, at Large. ~~The first, second, third, fourth and fifth Representative Districts.~~

Number Seven, at Large. ~~The sixth, seventh, eighth, ninth and tenth Representative Districts.~~

~~The first Senators elected from the Sixth Senatorial Districts of Kent and Sussex Counties shall serve for a two year term only, thereafter their successors shall serve for a full four year term.~~

All territory which shall hereafter be added to and included within the City of Wilmington shall become part of the Representative Districts in New Castle County, as follows:

~~All lying east of a straight line including the central line of Market street, below Eighth street, as the said two streets now exist, and south of a straight line including the central line of Eighth street, as the same now exists, shall become part of Representative District number one.~~

~~All lying north of a straight line including the central line of Eighth street, as the same now exists, extending from the northeasterly side of Brandywine Creek to the Delaware River, or north of the Brandywine Creek, westerly from the point of intersection of the said straight line with the northeasterly side of the said Creek, shall become part of Representative District number two.~~

~~All lying north of a straight line including the central line of Eighth street, as the same now exists, south of the Brandywine Creek, and west of the central line of Market street, as the same now exists, shall become part of Representative District number three.~~

~~All lying between a straight line including the central line of Market street extended southerly and a straight line including the central line of Washington street extended southerly shall become part of Representative District number four.~~

~~All lying south of a straight line including the central line of Eighth street, as the same now exists, and west of a straight line including the central line of Washington street, as the same now exists, shall become part of Representative District number five.~~

~~In case of any change in the boundary line between this State and the State of Pennsylvania any of the said Senatorial and Representative Districts in New Castle County affected thereby shall conform to any new boundary line between the said States.~~

~~All territory which shall hereafter be added to and included within the City of Wilmington shall become part of the Senatorial Districts in New Castle County as follows:~~

~~All lying north of a straight line including the central line of Eighth street, extended from the Delaware River westwardly, shall become part of Senatorial District number one.~~

~~All lying south of a straight line including the central line of Eighth street, extended from the Delaware River westwardly shall become part of Senatorial District number two.~~

~~Whenever by the extension of the limits of the City of Wilmington territory forming part of any Representative or Senatorial District, as hereby established, shall be included within the limits of the said city, such Representative or Senatorial District shall thereafter consist of the residue thereof, not so included within said limits.~~

~~The several Representative and Senatorial Districts in the State shall, except as herein otherwise provided, continue to be bounded, described and defined by the lines of the hundreds, wards, election districts, public roads, railroad and other boundaries herein mentioned, as the same are now established and located.~~

(a) The House of Representatives is composed of 41 members elected for terms of 2 years.

(b) The Senate is composed of 21 members elected for terms to be staggered as follows:

(1) The 10 Senators in even-numbered districts are to be elected as follows:

a. At the first biennial general election following redistricting for a term of 2 years.

b. At the next biennial general election following the term under paragraph (b)(1)a. of this Section for a term of 4 years.

c. At the next biennial general election following the term under paragraph (b)(1)b. of this Section for a term of 4 years.

(2) The 11 Senators in odd-numbered districts are to be elected as follows:

a. At the first biennial general election following redistricting for a term of 4 years.

b. At the next biennial general election following the term under paragraph (b)(2)a. of this Section for a term of 4 years.

c. At the next biennial general election following the term under paragraph (b)(2)b. of this Section for a term of 2 years.

(c) Representative and Senatorial district boundaries are to be determined under Section 2A of this Article.

Section 2. Amend § 2A, Article II of the Delaware Constitution by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 2A. ~~Additional representative districts.~~ Determining Representative and Senatorial district boundaries; Independent Redistricting Commission.

~~Section 2A. In addition to the existing 35 Representative Districts as set forth in Section 2 of this Article, there shall be additional Representative Districts as hereafter provided.~~

~~Each existing Representative District as set forth in Section 2 of this Article, with a population residing therein in excess of 15,000, as shown by the last official federal decennial census shall be entitled to one additional Representative for each additional 15,000 population or major fraction thereof residing within the District.~~

~~Upon any Representative District, as set forth in Section 2 of this Article, being entitled to more than one Representative, it shall be subdivided into new Representative Districts for each additional Representative to which it is entitled, from which shall be chosen by the qualified electors thereof, a Representative.~~

~~After each official federal decennial census the new Representative Districts created pursuant to this Section shall be abolished and the Representative Districts set forth in Section 2 of this Article shall again be re-divided as set forth herein.~~

~~The sub-dividing of the Representative Districts as set forth herein shall be done by a Redistricting Commission, consisting of the Governor, as Chairman, and the State Chairman of the two political parties receiving the largest vote for Governor at the preceding election for Governor as advisors to the Governor. Redistricting and reapportioning by the Commission as set forth herein shall be accomplished in accordance with the following criteria: Each new Representative District shall, insofar as is possible, be formed of contiguous territory; shall be as nearly equal in population as possible to the other new districts being created within the existing Representative District; shall be bounded by ancient boundaries, major roads, streams, or other natural boundaries; and not be so created as to unduly favor any person or political party.~~

~~Within 120 calendar days following the official reporting to the President of the United States of each decennial census, (or within 120 calendar days after this amendment takes effect) the Governor, on behalf of the Commission, shall file with the Secretary of State the plan for redistricting and reapportioning as provided for herein. Forthwith, after the~~

201 filing, the Governor shall issue a proclamation of redistricting and reapportioning. The Secretary of State shall cause such
202 proclamation to be published in two newspapers of general circulation within the State for two consecutive weeks, within
203 20 days after the issuance of the proclamation. The proclamation shall become effective within 30 days of its issuance.

204 ~~Any qualified voter may apply to the Superior Court to compel the Governor, by mandamus or otherwise, to~~
205 ~~perform the redistricting and reapportioning duties or to correct any error in redistricting and reapportioning. Application to~~
206 ~~compel the Governor to perform the redistricting and reapportioning duties must be filed within thirty days of the expiration~~
207 ~~of the 120 days allotted to the Commission to file its plan, if such plan is not timely filed. Application to compel correction~~
208 ~~of any error in redistricting and reapportioning must be filed within thirty days following the proclamation. Original~~
209 ~~jurisdiction in these matters is hereby vested in the Superior Court. On appeal, the cause shall be reviewed by the Supreme~~
210 ~~Court upon the law and the facts.~~

211 (a) Legislative findings. The General Assembly finds that the establishment of an independent redistricting
212 commission to redistrict Representative and Senatorial districts following each decennial federal census will advance the
213 principle of fair and equal representation on which our system of government is based.

214 (b) Independent Redistricting Commission established.

215 (1) The Independent Redistricting Commission ("Commission") is established to provide redistricting plans
216 for Representative and Senatorial districts authorized under Section 2 of this Article.

217 (2) The Commission is composed of 5 Commissioners selected under subsections (c) and (d) of this Section
218 and consisting of the following:

219 a. One Commissioner who is a resident of the City of Wilmington.

220 b. One Commissioner who is a resident of New Castle County and who resides outside the City of
221 Wilmington.

222 c. One Commissioner who is a resident of Kent County.

223 d. One Commissioner who is a resident of Sussex County.

224 e. One Commissioner who is a resident of this State.

225 (c) Application for and selection of candidates to the Commission; qualifications; oath

226 (1)a. By January 8 of each year ending in a 1, a panel consisting of the Chancellor and a Superior Court judge
227 who is registered with a different political party than the Chancellor, appointed by the President Judge of the Superior
228 Court, shall select 24 candidates to serve on the Commission who meet the qualifications under paragraphs (c)(2) and
229 (c)(3) of this Section.

b. Of the 24 candidates, 8 candidates must be registered to vote with 1 of the 2 largest political parties, 8 candidates must be registered to vote with the other of the 2 largest political parties, and 8 candidates must be registered to vote as unaffiliated with a political party or with a political party other than the 2 largest political parties. For purposes of this paragraph (c)(1)b., “2 largest political parties” means the 2 political parties with the most registered voters in this State.

(2) To be selected as a Commissioner, an individual must meet all of the following:

a. Be a resident of this State.

b. Be a qualified voter.

c. Not have changed the individual’s political party affiliation in the 3 years before selection as a Commissioner.

d. Not be, or within 5 years before selection as a Commissioner have been, any of the following:

1. Registered as a federal or state lobbyist.

2. An officer of a federal or state political party.

3. An officer of a campaign committee for a candidate for federal or state office.

4. An elected or paid appointed federal or state official.

(3) A candidate for the Commission shall attest to all of the following under oath or by affirmation:

a. That the candidate is willing to serve as a member of the Commission.

b. That the candidate is able to serve as a member of the Commission in a fair and impartial manner.

c. That the candidate agrees to not allow personal, financial, or partisan political interests to affect the candidate’s decisions as a member of the Commission.

d. That the candidate agrees to abide by the law of this State, the federal Voting Rights Act, the duly adopted rules of the Commission, and any other applicable law.

(4) The panel under paragraph (c)(1)a. of this Section shall select candidates who have filed an application under paragraph (c)(5) of this Section and who are representative of the geographic, gender, racial, and ethnic diversity of this State and on the basis of civic involvement and knowledge of redistricting policy, civil rights, political science, demographics or statistics, elections, or voting rights laws.

(5) A resident of this State may apply to be a candidate for a position as a Commissioner by filing an application with the Commissioner of Elections on a form adopted by the Commissioner of Elections.

(6) The panel under paragraph (c)(1)a. of this Section shall select the candidates to serve on the Commission at a public meeting. The panel shall provide 7 calendar days’ notice of the public meeting. The panel shall disseminate

notice of the public meeting as provided for by an act of the General Assembly, which must include posting on the Department of Election's website, the General Assembly's website, and a website operated by the State for posting notices of public meetings.

(7) The panel under paragraph (c)(1)a. of this Section shall, within 5 calendar days of the public meeting required by paragraph (c)(6) of this Section, submit a written report with the names and application materials of the candidates selected by the panel to all of the following:

a. The President Pro Tempore of the Senate.

b. The Senate Minority Leader.

c. The Speaker of the House of Representatives.

d. The House Minority Leader.

e. The Commissioner of Elections.

f. The Director of the Division of Legislative Services.

(8) On receipt of the report required under paragraph (c)(7) of this Section, the Commissioner of Elections shall publish the report on the Department of Election's website and the Director of the Division of Legislative Services shall publish the report on the General Assembly's website.

(d) Selection of Commissioners.

(1) The Commissioners must be chosen by February 10 of each year ending in a 1 from the candidates selected under subsection (c) of this Section.

(2) The Commissioners are to be chosen as follows:

a. Not later than 7 calendar days before the deadline established under paragraph (d)(1) of this Section the following individuals may strike the name of 1 candidate from the candidates selected under subsection (c) of this Section by filing notice of the strike with the Commissioner of Elections, who shall post the notice on the Department of Election's website, and to the Director of the Division of Legislative Services, who shall post the notice on the General Assembly's website:

1. The President Pro Tempore of the Senate.

2. The Senate Minority Leader.

3. The Speaker of the House of Representatives.

4. The House Minority Leader.

b. From the candidates remaining after the strikes issued under paragraph (d)(2)a. of this Section, the Commissioner of Elections shall draw by lot candidates to be Commissioners until the Commissioner of Elections

selects candidates that meet the geographic requirements under paragraph (b)(2) of this Section and meet the following partisan balance:

1. Two candidates registered to vote with 1 of the 2 largest political parties, as defined under paragraph (c)(1)b. of this Section.

2. Two candidates registered to vote with the other of the 2 largest political parties, as defined under paragraph (c)(1)b. of this Section.

3. One candidate registered to vote as unaffiliated with a political party or with a political party other than the 2 largest political parties, as defined under paragraph (c)(1)b. of this Section.

(3) The selection of candidates by the Commissioner of Elections under paragraphs (d)(2)b. of this Section must occur at a public meeting. The Commissioner of Elections shall provide 7 calendar days' notice of the public meeting. The Commissioner of Elections shall disseminate notice of the public meeting, which must include posting on the Department of Election's website, the General Assembly's website, and a website operated by the State for posting notices of public meetings.

(4)a. Once the Commissioner of Elections has selected 5 candidates to be Commissioner under paragraph (d)(2)b. of this Section, the Commissioner of Elections shall announce the names of the 5 Commissioners at the public meeting held under paragraph (d)(3) of this Section and provide the names of the 5 Commissioners to all of the following:

1. The President Pro Tempore of the Senate.

2. The Senate Minority Leader.

3. The Speaker of the House of Representatives.

4. The House Minority Leader.

5. The Commissioner of Elections.

6. The Director of the Division of Legislative Services.

b. The Commissioner of Elections shall publish the names of the Commissioners on the Department of Election's website and the Director of the Division of Legislative Services shall publish the names of the Commissioners on the General Assembly's website.

(5) Any candidate who is not selected under paragraph (d)(2)b. of this Section remains on the list of candidates available to be selected under paragraph (f)(3) of this Section.

(e) Commissioner prohibited acts: training; compensation.

319 (1) A Commissioner may not be a candidate for the General Assembly for 5 years following the adoption of a
320 redistricting plan produced by the Commission on which the individual served as a Commissioner.

321 (2) A Commissioner may not register as a federal or state lobbyist for 5 years following the Commissioner's
322 service on the Commission.

323 (3) The Commissioner of Elections shall hold a training for Commissioners on the redistricting process. The
324 Commissioners shall attend the training. A Commissioner's failure to attend the training constitutes substantial neglect
325 of duty under paragraph (f)(1) of this Section.

326 (4) A Commissioner must be compensated at the rate of \$150 per day for each day the Commissioner
327 conducts business for the Commission. A Commissioner must be reimbursed for reasonable expenses incurred in the
328 conduct of the Commission's business, including lodging and travel.

329 (f) Removal and replacement of Commissioners.

330 (1) A Commissioner may only be removed from the Commission for a substantial neglect of duty, gross
331 misconduct in the performance of the duties of a Commissioner, or inability to discharge the duties of a Commissioner.

332 (2) The determination under paragraph (f)(1) of this Section must be made by a vote of a majority of the other
333 Commissioners.

334 (3) If a Commissioner resigns or is removed under paragraph (f)(1) of this Section, the Commissioner of
335 Elections shall hold a public meeting that meets the requirements of paragraph (d)(3) of this Section and draw by lot
336 from the candidates available under paragraph (d)(5) of this Section.

337 (g) Quorum; conducting business of the Commission; adopting operational and redistricting process rules.

338 (1) Three Commissioners constitute a quorum of the Commission for purposes of convening a meeting of the
339 Commission and conducting Commission business.

340 (2) An action of the Commission other than to adopt a final redistricting plan under subsection (l) of this
341 Section or a revised final redistricting plan under subsection (m) of this Section requires the concurrence of at least 3
342 Commissioners.

343 (3) Action of the Commission to adopt a final redistricting plan under subsection (l) of this Section or a
344 revised final redistricting plan under subsection (m) of this Section requires the concurrence of at least 4
345 Commissioners, one of whom must be the Commissioner chosen under paragraph (d)(2)b.3. of this Section.

346 (4) The Commission may adopt rules to govern the Commission's operations and the redistricting process that
347 are not inconsistent with this Section. If the Commission does not adopt rules to govern the Commission's operations,

or if the adopted rules do not govern a situation, the Commission is to be governed by the current edition of Mason's Manual of Legislative Procedure.

(h) Advisory Committees.

(1) Advisory Committees are intended to play a critical role in ensuring that the redistricting process is fair and equitable. Through the Advisory Committee process, the Commission will be provided with guidance and recommendations, which will serve as a resource for the Commission, providing valuable insights into the concerns and priorities of Delaware communities. The implementation of Advisory Committee processes will promote public trust and confidence in the redistricting process by providing a forum for public input and review.

(2) Scope and responsibilities of an Advisory Committee.

a. Four Advisory Committees are established, as follows:

1. One Advisory Committee for the City of Wilmington.
2. One Advisory Committee for New Castle County, excluding the City of Wilmington.
3. One Advisory Committee for Kent County.
4. One Advisory Committee for Sussex County.

b. An Advisory Committee shall act in an advisory capacity to the Commission, making non-binding recommendations intended to serve only as guidelines for the Commission's decision-making.

c. An Advisory Committee shall avoid political bias or conflicts of interest. The use of partisan data is not allowed, except to the extent necessary to comply with the legal requirements, such as the Voting Rights Act.

d. An Advisory Committee shall endeavor to attain maximum feasible representation of all communities in Delaware through the inclusion of community organizers and non-profit organizations.

(3) An Advisory Committee's relationship with the Commission.

a. The Commission shall consider the recommendations of an Advisory Committee in good faith and shall provide a response to the Advisory Committee's recommendations.

b. An Advisory Committee may not engage in any activities that can be construed as attempting to exert undue influence on the final decision-making of the Commission.

(4) Advisory Committee membership.

a. An Advisory Committee is composed of 12 members.

b. Members of an Advisory Committee must be diverse in terms of race, ethnicity, gender, and geographic location. To ensure that an Advisory Committee makes well-informed recommendations, expert

members in the fields of election law, redistricting, demographics, political science, community organizing, and data visualization must be appointed through a transparent and inclusive process.

c. An Advisory Committee must include all of the following:

1. Two experts in the field of election law or redistricting.

2. Two experts in the field of demographics.

3. Two experts in the field of political science.

4. Six representatives of nonprofit organizations that conduct extensive public service or outreach in the geographic area of the Advisory Committee.

(5) Appointment process for Advisory Committee members.

a. The Commission shall appoint members of an Advisory Committee.

b. The Commission shall issue a call for nominations to be an Advisory Committee member to nonprofit organizations, nonprofit coalitions, and experts required under paragraph (h)(4)c. of this Section.

c. The Commission shall establish criteria for selecting members of an Advisory Committee and shall review the nominations received and assess the nominees against the selection criteria.

d. The appointment of an individual as a member of an Advisory Committee requires the concurrence of at least 3 Commissioners.

e. A member of an Advisory Committee serves during a redistricting process and the Commission may reappoint a member of an Advisory Committee for a subsequent redistricting process.

(6) An Advisory Committee shall conduct public hearings to receive public comments from the public and nonprofits not selected to serve on an Advisory Committee.

(i) Prohibited communications; transparency; accountability.

(1) A Commissioner may not communicate with any of the following regarding the subject of redistricting outside of a public meeting held under this Section:

a. Members of the General Assembly.

b. Other State elected or paid appointed officials.

c. Former State elected or paid appointed officials.

d. Staff of and consultants to elected or paid appointed State officials.

e. Candidates for State office.

f. Representatives of political parties.

g. A member of an Advisory Committee established under this Section.

407 (2) The Commission may, by rule, prohibit communications with individuals in addition to individuals under
408 paragraph (i)(1) of this Section.

409 (3) The Commission shall conduct an open and transparent redistricting process enabling full public
410 consideration of, and comment on, the drawing of Representative and Senatorial district lines.

411 (4) A Commissioner shall conduct Commission business with integrity and fairness.

412 (5) The Commission shall establish a public schedule and deadline to receive and consider proposed
413 redistricting plans. A plan submitted under this paragraph (i)(5) may be complete or partial.

414 (6) The Commission shall only hold public meetings. The Commission shall provide 7 calendar days' notice
415 of a public meeting. The Commission shall disseminate notice of a public meeting, which must include posting on the
416 Department of Election's website, the General Assembly's website, and a website operated by the State for posting
417 notices of public meetings.

418 (7) The Commission shall provide for the virtual participation of the public at the Commission's public
419 meetings. For purposes of this paragraph (i)(7), "virtual participation" means the ability for the public to hear and see
420 the public meetings through the use of an electronic means of communication.

421 (8) The Commission shall establish a website that contains information to assist the public in reviewing,
422 understanding, evaluating, and commenting on the work of the Commission. The website must, at a minimum, include
423 all of the following:

424 a. The location and schedule for each Commission meeting.

425 b. The agenda for each Commission meeting.

426 c. Any rules adopted by the Commission under paragraph (g)(4) of this Section.

427 d. Draft and approved minutes of each Commission meeting.

428 e. The 2021 Representative and Senatorial district maps and the final Representative and Senatorial
429 district maps for each subsequent redistricting.

430 f. Interim and preliminary Representative and Senatorial district maps prepared by the Commission.

431 g. Broadcasts and recordings of the Commission's public meetings under paragraph (i)(6) of this Section
432 and public hearings under paragraph (k)(8) of this Section.

433 (j) Standards and criteria for a redistricting plan.

434 (1) Each redistricting plan shall provide effective representation for all residents of this State, including racial,
435 ethnic, and language minorities.

(2) The Commission shall use the following criteria in determining the boundaries of Representative and Senatorial districts:

a. The districts are to be formed of contiguous territory.

b. The districts are to be nearly equal in population, with no more than 5% population deviation between districts.

c. The districts are to be bounded by major roads and streams or other natural boundaries.

d. The districts are to be created so as to not unduly favor any person or political party.

1. The places of residence of individuals, including incumbent members of the General Assembly or individuals who are candidates for the General Assembly, may not be identified or considered by the Commission.

2. Party registration and voting history data may not be used by the Commission in the initial phase of the mapping process, but may be used by the Commission to test redistricting plans for compliance with this subsection.

e. The districts are to comply with all standards mandated by federal law, including the federal Voting Rights Act, 42 U.S.C. §§ 1971 et. seq., or any successor law.

f. The districts are to comply with the criteria for counting incarcerated individuals for redistricting purposes, as established by an act of the General Assembly.

g. The districts are to be created to consider and preserve communities of interest. For purposes of this paragraph (j)(2)g., “communities of interest” means neighborhoods, communities, or groups of individuals who have common policy concerns and would benefit from being maintained in a single Representative or Senatorial district.

(k) Preliminary redistricting plan and report.

(1) Except as provided under paragraph (k)(2) of this Section, not later than the second Monday in May of each year ending in a 1 the Commission shall publish a preliminary redistricting plan and report for Representative and Senatorial districts.

(2) The General Assembly may, with the concurrence of a majority of the members elected to each House, extend the date of the preliminary redistricting plan and report.

(3) If the Commission fails to publish a preliminary redistricting plan and report by the date provided under paragraph (k)(1) or (2) of this Section, the Supreme Court, by a majority vote, shall approve a final redistricting plan and report. The final redistricting plan and report must comply with the standards and criteria established under

subsection (j) of this Section. The Supreme Court's final redistricting plan and report is to be submitted to the General Assembly under paragraph (m) of this Section.

(4) The preliminary redistricting plan and report must comply with the standards and criteria established under subsection (j) of this Section.

(5) The preliminary redistricting plan and report must include all of the following:

a. The population and percentage deviation from the average district population for each Representative and Senatorial district.

b. An explanation of the criteria used to develop the preliminary redistricting plan and report.

c. The majority and minority population of each district, separately reporting each minority population to the extent permitted by census and demographic data.

d. The voting age population and majority and minority voting age population of each district, separately reporting each minority voting age population to the extent permitted by census and demographic data.

e. Any other data or information the Commission or General Assembly determines will help the public to evaluate whether the preliminary redistricting plan and report complies with the law of this State and federal law, including the federal Voting Rights Act, 42 U.S.C. §§ 1971 et. seq., or any successor law.

(6) The Commission shall publish the preliminary redistricting plan and report on the Commission's website and submit the preliminary redistricting plan and report to all of the following:

a. The President Pro Tempore of the Senate.

b. The Senate Minority Leader.

c. The Speaker of the House of Representatives.

d. The House Minority Leader.

e. The Commissioner of Elections.

f. The Director of the Division of Legislative Services.

(7) On receipt of the preliminary redistricting plan and report, the Commissioner of Elections shall publish the preliminary redistricting plan and report on the Department of Election's website and the Director of the Division of Legislative Services shall publish the preliminary redistricting plan and report on the General Assembly's website.

(8) After publication of the preliminary redistricting plan and report under paragraphs (k)(6) and (k)(7) of this Section, the Commission shall hold 4 public hearings to review the preliminary redistricting plan and report, 1 in each county and 1 in the City of Wilmington.

a. The Commission shall hear comments and questions from the public at each public hearing.

b. The Commission shall provide for the virtual participation of the public at each public hearing. For purposes of this paragraph (k)(8)b., “virtual participation” means the ability for the public to hear and see the public hearings and to provide comments and questions to the Commission by electronic means of communication.

c. The Commission shall provide 7 calendar days’ notice of each public hearing. The Commission shall disseminate notice of each public hearing, which must include posting on the Department of Election’s website, the General Assembly’s website, and a website operated by this State for posting notices of public meetings.

(l) Commission approving or failing to approve final redistricting plan and report; court redistricting plan.

(1)a. Except as provided under paragraph (l)(1)b. of this Section, not later than June 30 of each year ending in a 1, the Commission shall adopt a final redistricting plan and report for Representative and Senatorial districts.

b. The General Assembly may, with the concurrence of a majority of the members elected to each House, extend the date for the approval of the final redistricting plan and report to a date not later than August 1 of the same year.

(2) If the Commission fails to approve a final redistricting plan and report by the date provided under paragraph (l)(1) of this Section, the Supreme Court, by a majority vote, shall approve a final redistricting plan and report.

(3) The final redistricting plan and report must comply with the standards and criteria established under subsection (j) of this Section.

(4) The final redistricting plan and report must include all of the following:

a. The population and percentage deviation from the average district population for each Representative and Senatorial district.

b. An explanation of the criteria used to develop the final redistricting plan and report.

c. The majority and minority population of each district, separately reporting each minority population to the extent permitted by census and demographic data.

d. The voting age population and majority and minority voting age population of each district, separately reporting each minority voting age population to the extent permitted by census and demographic data.

e. Any other data or information the Commission, General Assembly, or Supreme Court, as applicable determines will help the public to evaluate whether the final redistricting plan and report complies with the law of this State and federal law, including the federal Voting Rights Act, 42 U.S.C. §§ 1971 et. seq., or any successor law.

(5) The Commission shall publish the final redistricting plan and report on the Commission's website and submit the final redistricting plan and report to all of the following:

a. The President Pro Tempore of the Senate.

b. The Senate Minority Leader.

c. The Speaker of the House of Representatives.

d. The House Minority Leader.

e. The Commissioner of Elections.

f. The Director of the Division of Legislative Services.

(6) On receipt of the final redistricting plan and report, the Commissioner of Elections shall publish the final redistricting plan and report on the Department of Election's website and the Director of the Division of Legislative Services shall publish the final redistricting plan and report on the General Assembly's website.

(m) Vote by the General Assembly; enactment of final redistricting plan; revised final redistricting plan; court redistricting plan.

(1) After publication of the final redistricting plan and report, the General Assembly, not later than October 1 of a year ending in 1, shall do one of the following:

a. If the final redistricting plan and report is submitted on or before June 30 of a year ending in 1, vote on the final redistricting plan and report or vote to delay consideration of the final redistricting plan and report until a date certain during a special session.

b. If the final redistricting plan and report is submitted on or after July 1 of year ending in 1 or the General Assembly votes under paragraph (m)(1)a. of this Section to delay consideration of the final redistricting plan and report until a date certain during a special session, convene in special session and vote on the final redistricting plan and report.

(2) Notwithstanding Section 18 of Article III, for the final redistricting plan and report or revised final redistricting plan and report to become law by act of the General Assembly, the final redistricting plan and report or revised final redistricting plan and report must pass both Houses with the concurrence of a majority of all the members elected to each House. The final redistricting plan and report or revised final redistricting plan and report is not required to be presented to the Governor for action before it becomes law by act of the General Assembly.

(3)a. If the final redistricting plan and report is not enacted into law under paragraph (m)(2) of this Section within 5 calendar days after the final redistricting plan and report is first considered by a House of the General Assembly, the following occurs:

556 1. If the Commission prepared the final redistricting plan and report, the Commission shall prepare a
557 revised final redistricting plan and report.

558 2. If the Supreme Court prepared the final redistricting plan and report, the General Assembly shall
559 provide the Supreme Court with the General Assembly's objections and the Supreme Court, by a majority
560 vote, shall prepare a revised final redistricting plan and report in compliance with the standards and criteria
561 established under subsection (j) of this Section. The revised final redistricting plan and report prepared by the
562 Supreme Court becomes law.

563 b. In preparing a revised final redistricting plan and report under paragraph (m)(3)a.1. of this Section, the
564 Commission must comply with the requirements of this Section related to preparing a final redistricting plan and
565 report, including the transparency requirements under paragraphs (i)(3) and (i)(6) of this Section.

566 c.1. The Commission shall submit the Commission's revised final redistricting plan and report to the
567 General Assembly not later than 25 calendar days after beginning preparation of a revised final redistricting plan
568 and report under paragraph (m)(3)a.1. of this Section.

569 2. If the Commission fails to approve a revised final redistricting plan and report by the date provided
570 under paragraph (3)c.1. of this Section, the Supreme Court, by a majority vote, shall prepare a revised final
571 redistricting plan and report in compliance with the standards and criteria established under subsection (j) of
572 this Section.

573 d. The General Assembly, not later than 7 calendar days after the date the Commission or Supreme Court,
574 as applicable, submits the revised final redistricting plan and report to the General Assembly under paragraph
575 (m)(3)c. of this Section, shall do one of the following:

576 1. If the revised final redistricting plan and report is submitted on or before June 30 of a year ending
577 in 1, vote on the revised final redistricting plan and report or vote to delay consideration of the revised final
578 redistricting plan and report until a date certain during a special session.

579 2. If the revised final redistricting plan and report is submitted on or after July 1 of year ending in 1
580 or the General Assembly votes under paragraph (m)(3)d.1. of this Section to delay consideration of the
581 revised final redistricting plan and report until a date certain during a special session, convene in special
582 session and vote on the revised final redistricting plan and report.

583 (4) If the revised final redistricting plan and report is provided by the Commission and not enacted into law
584 under paragraph (m)(2) of this Section within 5 calendar days after the revised final redistricting plan and report is first
585 considered by a House of the General Assembly, the General Assembly shall provide the Supreme Court with the

General Assembly's objections and the Supreme Court, by a majority vote, shall prepare a revised final redistricting plan and report in compliance with the standards and criteria established under subsection (j) of this Section. The revised final redistricting plan and report prepared by the Supreme Court becomes law.

(n) Judicial review; court redistricting plan.

(1) The Supreme Court has original and exclusive jurisdiction to review a redistricting plan adopted under paragraph (m)(2) or (m)(3)a.1. of this Section.

a. A petition for mandamus or other review must be filed within 30 calendar days after the adoption of a redistricting plan under paragraph (m)(2) or (m)(3)a.1. of this Section.

b. A resident of this State has standing to file a petition for mandamus or other review.

(2) If a redistricting plan adopted under subsection (m)(2) or (m)(3)a.1. of this Section is adjudicated unconstitutional or in violation of the law of this State or federal law, the Supreme Court shall redistrict the Representative and Senatorial districts in compliance with the standards and criteria established under subsection (j) of this Section and remedy any finding of unconstitutionality or violation of the law of this State or federal law.

(o) Commission funding, agency assistance, and staffing.

(1) The General Assembly shall do all of the following:

a. Appropriately fund the Commission to provide the Commission with support staff, consultants, equipment, computer software, materials, and other resources necessary for the Commission to comply with this Section.

b. Provide office space for the Commission and the Commission's support staff, records, and equipment.

c. Ensure that a complete and accurate computerized database is available for purposes of redistricting, and that procedures are in place to provide the public with access to redistricting data and software for drawing Representative and Senatorial district maps. The General Assembly shall coordinate efforts under this paragraph (o)(1)c. with the Commission.

(2) The Commissioner of Elections and the Commission shall work together to ensure that coordination with municipal and county redistricting efforts is maintained throughout the process. The Commissioner of Elections and the Department of Elections in each county shall make staff, including those familiar with the redistricting process, and resources, including computer software, readily available to assist the Commission.

(3) The Commission may retain the services of 1 or more attorneys. An attorney retained by the Commission must meet the requirements of paragraphs(c)(2) and (c)(3) of this Section.

615 (4) The Commission may retain the services of an entity to assist the Commission in preparing Representative
616 and Senatorial district maps and other materials for the Commissions' preliminary, final, and revised final redistricting
617 plan and report.

618 (p) Report to the General Assembly.

619 (1) By December 1 of each year ending in a 1, the Commission shall publish a report of recommendations for
620 improvements to the redistricting process on the Commission's website and submit the report to all of the following:

621 a. The President Pro Tempore of the Senate.

622 b. The Senate Minority Leader.

623 c. The Speaker of the House of Representatives.

624 d. The House Minority Leader.

625 e. The Commissioner of Elections.

626 f. The Director of the Division of Legislative Services.

627 (2) On receipt of the report under paragraph (p)(1) of this Section, the Commissioner of Elections shall
628 publish the report on the Department of Election's website and the Director of the Division of Legislative Services
629 shall publish the report on the General Assembly's website.

630 (q) Cessation of the Commission.

631 (1) The Commission shall continue in existence until a redistricting plan is adopted under subsection (m) or
632 (n) of this Section or until the Commission issues the report required under subsection (p) of this Section, whichever is
633 later.

634 (2) When the Commission completes the Commission's work, the Commission shall take all necessary and
635 reasonable steps to conclude the Commission's business and cease operations.

636 a. The Commission shall prepare a financial statement disclosing all expenditures made by the
637 Commission. Any unexpended funds revert to the General Fund.

638 b. The Commission shall include in its official records all relevant information developed or received by
639 the Commission under this Section, including maps, data collected, minutes, transcripts and recordings of
640 meetings, written communications, public notices, and any other information.

641 (3) Once the Commission ceases to exist, the Commissioner of Elections is the custodian of the Commission's
642 records. The Commissioner of Elections shall retain the Commission's records for at least 20 years.

SYNOPSIS

 This Act is the first leg of a constitutional amendment to create an independent redistricting commission to redistrict Senatorial and Representative districts following each federal decennial census.

The purpose of this Act is to establish more transparency in government, and to strengthen citizens' faith in the election and redistricting processes that serve as the foundation of democracy in this State. To achieve this purpose, this Act establishes the Independent Redistricting Commission ("Commission").

The Commission is responsible for drawing the boundaries of Delaware's Representative and Senatorial districts every 10 years, following each decennial census.

The process begins with the selection of a pool of 24 potential Commission members by a bipartisan judicial panel from applications filed with the Commissioner of Elections. The pool must include 8 candidates from each of the State's two largest political parties and 8 candidates that are not a member of either of the State's two largest parties.

Before the selection of Commission members from the pool of 24 potential Commission members, the following individuals each have the opportunity to strike one candidate from the pool: the Speaker of the House of Representatives, the House Minority Leader, the President Pro Tempore of the Senate, and the Senate Minority Leader. From the pool of remaining candidates, the Commissioner of Elections will draw by lot until the following conditions are satisfied:

(1) The Commission has 5 members, with 1 member from each county, plus 1 member from the City of Wilmington, plus 1 member from anywhere in this State.

(2) Two members of the Commission are members of the State's largest political party, 2 members of the Commission are members of the State's second largest political party, and 1 member of the Commission who is not a member of either of the State's two largest political parties.

Eligible candidates may not be, and may not have in the 5 years before appointment been, a federal or state lobbyist, an officer of a federal or state political party, an officer of a campaign committee, or an elected federal or state official. Commissioners are also prohibited from running for the General Assembly in the election following the redistricting and from registering as a federal or state lobbyist for 5 years following the term as a Commissioner.

Once established, the Commission must prepare a preliminary redistricting plan and report for public distribution, and 4 public hearings must be held before a final redistricting plan and report is approved by the Commission. The Commission is to be guided in this task by standards and criteria established in this Act, including that the redistricting plan provide effective representation for all residents of this State, including racial, ethnic, and language minorities, and meeting the following criteria:

(1) The districts are to be formed of contiguous territory.

(2) The districts are to be nearly equal in population, with no more than 5% population deviation between districts.

(3) The districts are to be bounded by major roads and streams or other natural boundaries.

(4) The districts are to be created so as to not unduly favor any person or political party.

(5) The districts are to comply with all standards mandated by federal law, including the federal Voting Rights Act, 42 U.S.C. §§ 1971 et. seq., or any successor law.

(6) The districts are to comply with the criteria for counting incarcerated individuals for redistricting purposes, as established by an act of the General Assembly.

(7) The districts are to be created to consider and preserve communities of interest.

The Commission is to be advised in its efforts by 4 advisory committees, one for each county and one for the City of Wilmington. Each advisory committee is to consist of 12 members appointed by the Commission. The members must be diverse in terms of race, ethnicity, gender, and geographic location, and, to ensure that an advisory committee makes well-informed recommendations, expert members in the fields of election law, redistricting, demographics, political science, community organizing, and data visualization must be appointed through a transparent and inclusive process.

For the Commission's final redistricting plan and report to become law, the plan and report must pass both Houses of the General Assembly with the concurrence of a majority of all members elected to each House, but not presented to the Governor for action. If the General Assembly fails to pass the Commission's final plan and report or revised final plan and report, the Supreme Court shall redistrict the Representative and Senatorial districts in compliance with the standards and criteria in this Act. If the Commission fails to adopt a preliminary, final, or revised final redistricting plan and report, the Supreme Court shall redistrict the Representative and Senatorial districts in compliance with the standards and criteria in this Act.

The Supreme Court has original and exclusive jurisdiction to resolve challenges to the final redistricting plan and report enacted by the General Assembly or itself. If a redistricting plan and report adopted by the General Assembly is adjudicated unconstitutional or in violation of the law of this State or federal law, the Supreme Court shall redistrict the Representative and Senatorial districts in compliance with the standards and criteria in this Act.

This Act requires a greater than majority vote for passage because § 1 of Article XVI of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend the Delaware Constitution.

Amending the Delaware Constitution requires not only the passing of the changes in this Act, but also passage of the same changes after the next general election by the next General Assembly.

Author: Senator Hoffner